

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.9714-J of 2020

(Imran alias Mana v. The State)

and

Criminal Appeal No.9716 of 2020

(Tanveer Qamar v. The State & 3 others)

and

Murder Reference No.54 of 2020

(The State v. Imran alias Mana)

JUDGMENT

Date of hearing: 18.03.2025

Appellant by: Mr. Muhammad Ajmal Adil, Advocate.

Complainant by: Mr. Azam Jan, Advocate.

State by: Rana Ahsan Aziz, Additional Prosecutor General.

Abher Gul Khan, J. Imran alias Mana (appellant) along with three other co-accused involved with case FIR No.102/2018 dated 07.02.2018 registered under Sections 302 & 34 PPC at Police Station Gulberg, District Faisalabad, was tried by learned Additional Sessions Judge, Faisalabad. Trial court *vide* judgment dated 23.01.2020 while acquitting the afore-mentioned co-accused proceeded to convict and sentence the appellant in the following terms:-

Under Section 302(b) PPC to suffer death sentence as *ta'zir*. He was also directed to pay compensation of Rs.5,00,000/- in terms of Section 544-A, Cr.P.C. to the legal heirs of Rana Burhan (deceased) which was ordered to be recovered as arrears of land revenue and in default of payment of compensation to undergo simple imprisonment for six months.

Against his conviction and sentence Imran alias Mana (appellant) preferred **Criminal Appeal No.9714-J of 2020**, whereas complainant Tanvir Qamar (PW.6) filed **Criminal Appeal No.9716 of 2020** against the acquittal of Muzammil alias Badshah, Tayyab alias Ali Kataria and Nasir Mahmood (respondents No.2 to 4). Likewise, trial court forwarded a reference which was numbered as **Murder Reference No.54 of 2020** under Section 374 Cr.P.C. to seek

confirmation or rejection of the death sentence imposed on the convict, Imran alias Mana. These three matters are being decided through this single judgment.

2. Epitomized facts of the case of the prosecution put forward in the shape of complaint (Exh.PF) presented by Tanvir Qamar (PW.6) on the basis of which FIR (Exh.PF/1) was registered are that he is resident of Awami Colony whereas his brother Rana Burhan aged 48/49 years was running Estate Agency at Melad Road and did the business of property dealing. On 07.02.2018 at about 3:30 p.m. his brother Irfan and Rana Mujtaba s/o Rana Muhammad Iqbal were sitting in front of the shop of Rana Burhan. Meanwhile, Rana Burhan received a call on his cell No.03006640916 and attended the same. After hearing the phone, the caller used an aggressive tone, and Rana Burhan got worried. After some time, Imran alias Mana, armed with a pump action, Tayyab alias Ali Kataria, armed with a .30 bore pistol, along with two unknown accused, came there on a Qingqi rickshaw and motorcycle and started firing. Imran alias Mana fired the first shot with his pump action, which landed on different parts of Rana Burhan's body, whereas the rest of the accused kept on firing shots from their respective pistols. Imran alias Mana continued firing from his pump action and advanced the threat that if anybody came forward, he would also be done to death. Rana Burhan, after becoming injured, fell on the ground, whereas the accused managed their escape from the place of occurrence while raising Lalkara and making aerial firing. Due to the act of the accused, panic was created in the whole bazaar, and the people, after closing the shops, confined themselves in their houses. The complainant and others shifted Rana Burhan in injured condition to Allied Hospital, where, during the treatment, he succumbed to injuries. The stated motive behind the occurrence was that one Adnan alias Jimmi had a money dispute with the accused, for which Rana Burhan stood as arbitrator and decided that nothing was payable by Adnan alias Jimmi.

3. After the receipt of information about the incident, Idrees Iqbal SI (PW.8) on 07.02.2018 reached the Allied Hospital where complainant Tanvir Qamar (PW.6) presented the application (Exh.PF) for the registration of FIR. Thereupon, he endorsed police proceedings and sent it to the police station through Riaz HC/1430 for the registration of a formal FIR. Thereafter, he inspected the dead body, prepared an injury statement (Exh.PH) and inquest report (Exh.PI), and deputed Umer Farooq 275/C to conduct the autopsy of the dead body. He secured the mobile phone of Rana Burhan from his pocket through memo Exh. PJ. Subsequently, he visited the place of occurrence, drafted an unscaled site plan (Exh.PQ), and secured blood through cotton through memo Exh.PK. From the spot, he also took into possession three empties of cartridges (P.5/1-3) of .12 bore gun and six crime empties of .30 bore pistol (P.6/1-6) through memo Exh.PL. On 23.02.2018, he arrested Imran alias Mana (appellant), who, on 25.02.2018, made a disclosure and in pursuance thereof led to the recovery of repeater .12 bore (P.7) through memo Exh. PM. On the same day, Nasir (co-accused) got recovered rickshaw (P.8), which was taken into possession vide memo Exh. PN. After complying with all the codal formalities, the Investigating Agency submitted a report under Section 173 Cr.P.C.

4. The prosecution produced 08 witnesses in total to prove its case against the appellant. Dr. Ijaz Hussain (PW.5) furnished the medical evidence, Tanvir Qamar (PW.6) and Rana Mujataba (PW.7) entered appearance in the witness box as witnesses of ocular account, whereas, **Idrees Iqbal SI (PW.8)** investigated this case. The remaining PWs were more or less formal and acted according to the law to aid and support the investigation.

5. Dr. Ijaz Hussain (PW.5) on 07.02.2018 at about 6:30 p.m. conducted the autopsy of Rana Burhan and observed the following injuries:-

Injury No.1: Firearm wound of entry on the lateral eye of lateral side of left eye, metallic piece recovered from the skin just below the left ear.

Injuries No.2

& 3: Each $\frac{1}{2} \times \frac{1}{2}$ cm on the front of chest at the sternum skin deep at the distance of 3 cm, 5 cm below the juggler notch.

Injury No.4: Firearm wound of entry $1 \times \frac{3}{4}$ cm on the front of left side of chest cross the 4th intercostal space, damaged heart and left lung, metallic piece recovered underneath the skin on the back of left chest.

Injury No.5: Firearm wound of entry at the upper angle of right axilla and metallic piece recovered from underneath the skin at the right clavicle.

Injury No.6-A: Wound of entry 1×1 cm on the front of elbow, 1 cm above the elbow.

Injury No.6-B: Wound of exit 1×1 cm on the front of elbow, 1 cm below the elbow.

According to the doctor, the cause of death was injury No.4, which damaged the heart and left lung. The doctor described the probable time between injury and death as immediate and between death and postmortem as four hours.

6. After the conclusion of prosecution evidence, Imran alias Mana (appellant) was examined under section 342 Cr.P.C., who in response to the question “Why this case against you and why the PWs have deposed against you?” replied as under: -

“I am innocent. I have been falsely implicated. Intrinsically I, Muzammil alias Badshah had purchased a house owned by the complainant situated in street No.17 of Raza Abad, against consideration amount of 65,00,000/- and an amount of Rs.35,00,000/- was afforded by me to the complainant on 10.09.2017, the complainant promise to hand over the possession and to execute the same in favour of me by or before 11.01.2018 but the complainant who is a wanderlust and the entire family is known as a terror in the area, having a burden of number of criminal cases against him, refused to get transferred the above said house in the name of me and also paid a denial to pay back the earnest amount of Rs.35,00,000/-. So many Punchayats were conducted but the complainant remained reckless. On one occasion a harsh talk were exchanged between the complainant and Tayab alias Ali Kataria and the complainant threatened to teach a lesson to all the three brothers. During this tug of war in between the complainant and us, Rana Burhan was murdered in a dacoity incident and the complainant party found an opportunity to fulfill their words of teaching us as lesion. I have no motive whatsoever to kill the deceased Rana Burhan. I agitated before the I.O that complainant had done gross in justice to him. The whole prosecution story is full of cracks. It was an unseen and unattended occurrence. The prosecution has miserably failed to establish his case against me beyond any shadow of doubt. My

brothers namely Muzammil alias Badshah and Tayyab alias Ali Kataria had been found not involved in the case, which further provides strength to my false implication in this case. I pray for justice. I tendered the FIRs registered against the complainant and his other family members.”

The appellant neither opted to appear as of his own witness under Section 340(2) Cr.P.C. nor produced any evidence in his defence. After the trial, the appellant was convicted and sentenced as aforesaid, hence the instant criminal appeals and murder reference.

7. It is contended by learned counsel for the appellant that it was an unseen occurrence, but the complainant, in connivance with the local police, managed the presence of the eyewitnesses and involved the appellant and his co-accused with the case. The deceased, after sustaining injuries, remained unattended, and from this aspect, an inference can be drawn that the eyewitnesses were not present at the spot. A bare reading of the evidence of the ocular account reveals that they could not prove their presence on the spot. The medical evidence is in sharp contrast with the ocular account. The recovery of the .12 bore gun has been foisted upon the appellant to strengthen the prosecution case. It was, thus, prayed that by allowing the appellant's appeal, his conviction and sentence be set aside, and he be acquitted from all the charges.

8. On the other hand, the learned Additional Prosecutor General, assisted by learned counsel for the complainant, vehemently opposed the arguments advanced by learned counsel for the appellant and argued that it was a case of promptly lodged FIR wherein the appellant was named with the specific role of causing the fatal shot to the deceased. The eyewitnesses successfully proved their presence on the spot during the trial. The medical evidence is in line with the ocular account. The positive report of PFSA, through which the empties secured from the spot matched with the gun recovered from the appellant, is another factor to establish the appellant's guilt therefore, the confirmation of the conviction of the appellant was sought.

In support of the appeal against acquittal, i.e., Criminal Appeal No.9716 of 2020, learned counsel for the complainant raised his voice to the effect that the prosecution produced sufficient material against the respondents connecting them with the commission of the offence, and the reasons given by the learned trial court *qua* the acquittal of respondents are not based upon facts. The respondents, along with the principal accused, came at the spot in connivance with each other and took the life of an innocent soul. Thus, they are also liable to be convicted and sentenced.

9. We have gone through the case file, heard pro and contra arguments of the learned counsel for the parties well assisted by the Additional Prosecutor General and perused the record.

10. A minute perusal of the record reveals that the instant case emerged from an incident that took place on 07.02.2018 at about 3:30 p.m., during which one Rana Burhan was done to death by Imran alias Mana (appellant) along with three other co-accused. As per the story of the incident put forth by the prosecution, Tanvir Qamar (PW.6), Rana Mujtaba (PW.7), and Irfan (given up PW) were sitting in front of the shop of Rana Burhan at Melad Road. In their view, Rana Burhan, after receiving a call on his Cell No. 03006640916, became worried. Soon thereafter, Imran alias Mana, armed with a pump action, Tayyab alias Ali Kataria, armed with a .30 bore pistol, along with two unknown accused, came there on a Qingqi rickshaw and motorcycle and started firing. Imran alias Mana with his pump action made firing, which landed on various parts of the body of Rana Burhan, who died at the hospital. It is important to mention here that Tayyab alias Ali Kataria was named in the FIR for the role of aerial firing with his .30 bore pistol, whereas Muzammil alias Badshah and Nasir Mahmood accused are not named in the FIR, who were introduced subsequently through supplementary statement of Tanvir Qamar (PW.6). According to the stance of the complainant, at the relevant time Nasir Mahmood accused was driving the rickshaw,

whereas Muzammil accused was attributed the role that he had raised Lalkara that Burhan be fired.

11. It is straightaway observed that the incident occurred at a place known as Melad Road, situated at a distance of 2 kilometers from Police Station Gulberg, Faisalabad. The police acquired the details of the occurrence through the written application (Exh.PF) of Tanvir Qamar (PW.6) presented before Idrees Iqbal SI (PW.8) in Allied Hospital, Faisalabad at about 5:45 p.m. based on which formal F.I.R (Exh.PF/1) was chalked out at about 6:00 p.m. On the one hand, the prosecution claimed that the promptly lodged F.I.R. is a factor that negates all hypotheses of fabrication of facts and absence of PWs from the spot and goes miles in establishing the involvement of the appellant in the commission of a crime. On the other hand, the defence pleaded that the case was registered with an enormous delay, by manipulating the record made it look as if it was promptly registered. To adjudge the veracity of the respective claims of both sides, we have perused the record with the best possible circumspection. Firstly, it is noticed that the complaint (Exh.PF) was prepared at Allied Hospital and was dispatched to Police Station Gulberg, Faisalabad, for registration of formal F.I.R through Riaz Head Constable. Inexorably, in the given circumstances, Riaz, Head Constable, was essentially required to be produced before the learned trial court, but surprisingly, he was neither cited as a witness nor summoned for the recording of evidence. In our view, the deposition of the above-said witness was essentially required to prove the prompt registration of F.I.R. Besides that, the defence/accused had a right to cross-examine him to extract the truth. It will wholly be unjust on our part to blindly accept the claim of prosecution about the time upon which F.I.R was registered while paying no attention to withholding the most important witness in this regard. While dealing with the issue of non-production of a police constable who brought the complaint to the police station for the registration of F.I.R, the Supreme Court of

Pakistan in case reported as Minhaj Khan v. The State (2019 SCMR 326) held as under:-

“.....the non-production of Constable Jehanzeb Khan who took the written complaint and was an eye-witness of the occurrence and of the recovery memorandums; and the inexplicable conduct of the Complainant PW-2 in not proceeding to the police station himself to register the FIR are matters of concern and collectively of incredulity. The conclusion therefrom that we draw is that the prosecution had failed to establish its case against the petitioner beyond reasonable doubt, or, at worst, that the petitioner was involved in a false case for ulterior reasons.”

There is yet another factor which sheds doubt upon the claim of prosecution about prompt registration of F.I.R. and according to postmortem report (Ex.PG) and inquest report (Exh. PI), the Investigating Officer, namely Idrees Iqbal SI (PW.8) mentioned the date and time of incident as 07.02.2018 wherein, the deceased namely Rana Burhan died at 05:00 pm. The dead body of the deceased was identified by Adnan Shafqat and Muhammad Latif at Allied Hospital Faisalabad. Perusal of the record further reveals that the occurrence was statedly witnessed by three PWs, namely Tanvir Qamar, Rana Mujataba and Irfan but the inquest report (Exh.PI) does not contain the name of any of these persons, meaning thereby they were not present in the hospital at the time of identification of the dead body. Had the afore-said eyewitnesses been present at Allied Hospital, Faisalabad, the Investigating Officer would have definitely incorporated their names and associated them to identify the dead body. In such circumstances, the FIR (Exh.PF/1) has been lodged with a reasonable delay, and that too after concocting a false story. Reliance is placed upon the case reported as Muhammad Jahangir and another v. The State and others (2024 SCMR 1741), wherein the Supreme Court of Pakistan held as under: -

“Apart from dishonest improvements in the version of complainant, perusal of record reveals that FIR was lodged after an unexplainable delay of 3 hours despite the fact that the distance of the police station from the place of occurrence was 5 km. The time of occurrence is around 05:00/05:30 pm and the matter is reported at 08:30 p.m. The complainant had a bike that he used to go to the police station. This delay has

not been encountered through plausible explanation by the prosecution.”

12. During trial the detail of unfortunate incident leading to the assassination of Rana Burhan was brought on record by Tanvir Qamar (PW.6) and Rana Mujataba (PW.7). So far as Tanvir Qamar (PW.6) is concerned, he was the brother of Rana Burhan (deceased), whereas Rana Mujataba (PW.7) was not related to the deceased rather was friend of Tanvir Qamar (PW.6). While examining the evidence of eyewitnesses in a case of homicide the question of foremost importance pertains to their acclaimed presence at the spot. In the instant case, we have straightaway observed that according to Tanvir Qamar (PW.6), he was a resident of Awami Colony No.2, Faisalabad, which is situated at 8/9 streets from the place of occurrence, while the incident occurred at Melad Road. In the given circumstances, when the presence of Tanvir Qamar (PW.6) at the crime scene was not in accordance with the daily pursuit of his life, he was legally obliged to put forth some compelling reason for his acclaimed attendance, but this burden was not discharged during the trial. Similarly, as per his own stance, Rana Mujataba (PW.7) was a resident of Street No.11, Main Bazar Mansoorabad, Faisalabad, about 10 kilometers from Melad Road. He simply claimed to be in the company of Tanvir Qamar (PW.6) and uttered not a single word for his reason of being so. The presence of both the PWs at the spot, in the manner they claimed, makes them chance witnesses and their depositions suspect evidence. As a necessary corollary, the depositions of Tanvir Qamar (PW.6) and Rana Mujataba (PW.7) are to be discarded from consideration. In the case reported as Naveed Asghar and two others v. The State (PLD 2021 Supreme Court 600), the Supreme Court of Pakistan, while dealing with the evidence of a chance witness, held as under: -

“.....chance witness: a witness who in view of his place of residence or occupation and in the ordinary course of events is not supposed to be present at the place of the occurrence but claims to be there by chance. Testimony of such witness requires cautious scrutiny and is not accepted unless he gives

satisfactory explanation of his presence at or near the place of occurrence at the relevant time...”.

Further reference in this regard is placed on cases reported as Mst. Mir Zalai v. Ghazi Khan and others (2020 SCMR 319) and Muhammad Ashraf alias Acchu v. The State (2019 SCMR 652).

13. There is another factor discerning from the perusal of the record which makes it clear that the manner mode and the way in which the occurrence took place was not narrated alike by witnesses of ocular account and Tanvir Qamar (PW.6) deposed that:

“Imran Alias Mana armed with pump action, Tayyab alias Ali Kataria armed with 30-bore pistol alongwith two unknown persons came and started firing. Imran alias Mana made first fire with his pump action which landed on the different parts of the body of Rana Burhan. The accused persons resorted to firing and raising Lalkara. Again accused Imran alias Mana fired at Burhan.”

Whereas, Rana Mujtaba (PW.7) the other witness of ocular account deposed as under:

“After some time Imran alias Mana armed with 12-bore pump action boarding on Qingchi/Rickshaw, Tayyab alias Ali Kataria armed with 30-bore pistol, Nasir Mehmood who was driving Qingchi Rickshaw armed with pistol and Muzammil alias Badshah who was sitting as a pillion rided on the motorcycle which was driven by Tayyab and raised Lalkara and resorted to firing with their weapons. Imran alias Mana made first fire which hit on the different parts of the body of Rana Burhan. Rest of the accused persons kept on firing with their weapons. Again accused Imran alias Mana made fires with his weapon. Burhan fell down in injured condition and they decamped from the place of occurrence while raising Lalkaras and extending threats of dire consequences while brandishing their weapons.”

During the course of cross-examination the witness was confronted with his statement (Ex.DA) got recorded under section 161 Cr.P.C and he admitted that the story narrated during the course of examination-in-chief was not narrated in the same manner at the time of recording of his statement under section 161 Cr.P.C before police and the witness made dishonest improvement just to strengthen the case of prosecution against the accused. This aspect also leads us to conclude that the eyewitnesses were not present at the spot. Secondly,

according to the complainant, Rana Burhan, after sustaining injuries, fell on the ground. He, along with two other witnesses, shifted him to the hospital in injured condition, and during treatment, he succumbed to the injuries. However, such a stance of the complainant stands negated from the statement of Dr. Ijaz Hussain (PW.5), who during the course of his evidence deposed that:-

“The probable time that elapsed between injury and death was immediate.”

Moreover, none of the eyewitnesses gave any detail as to how they shifted the deceased to the hospital in injured condition. Furthermore, according to both eyewitnesses, the accused came to the spot while riding on a rickshaw and a motorcycle, but neither described the model, make, colour and the number of motorcycle nor the rickshaw.

14. We have observed that accused Tayyab alias Ali Kataria was named in the FIR with the allegation that he was equipped with .30 bore pistol at the relevant time, whereas Nasir Mehmood and Muzammil alias Badshah were not named in the FIR rather they were implicated as culprits of crime on 08.02.2018 based on supplementary statement of the complainant (PW.6). Complainant stated in the supplementary statement that Nasir Mehmood was driver of the rickshaw, whereas Muzammil alias Badshah was attributed the role that he was armed with pistol and had raised Lalkara that Burhan be fired. Investigating Officer during cross-examination further deposed that Rana Mujataba (PW.7) had not nominated Nasir as culprit in his statement under Section 161 Cr.P.C. Likewise, in the supplementary statement the complainant had not mentioned the source of his information as to how he came to know about the culpability of accused Nasir and as such no reliance on such statement can be placed. Reference is made to the cases reported as Muhammad Yaqoob and others v. The State (2007 YLR 534) and Nusrat Bibi and others v. The State (2015 YLR 2694). In the latter cited judgment, the following observation was given: -

“Reliance on supplementary statement Ex.PL is also liable to be excluded from consideration for the reason that a supplementary

statement is neither continuation of first information report nor can be read in expansion thereof; it is a statement for all intents and purposes, in whatever form, is a statement under section 161 Code of Criminal Procedure, 1898, use whereof, is controlled by the riders provided in Section 162 of the Code ibid as such there was no occasion for the learned trial Judge to admit supplementary statement in written form in evidence through its exhibition as Ex.PL.”

According to the statement of Idrees Iqbal SI (PW.8), in his investigation Tayyab alias Ali Kataria and Muzammil Badshah though allegedly were armed with pistols at the relevant time but they were declared innocent and besides that Muzammil Badshah was found to be crippled from his right arm. It is noticed that during the investigation, no crime weapon was recovered from any of the afore-said three accused, nor was any role of causing injury either to the deceased or PW attributed to them. The matter was investigated up to RIB. However, the complainant filed no application challenging the investigation findings, nor did he opt to file any private complaint in the trial court against the exoneration of the afore-said two accused. During cross-examination, PW.6 categorically admitted that he was fully satisfied with the investigation conducted by the Investigating Officer (PW.8). PW.7 during evidence deposed that when accused, Imran alias Mana had made the fire shot on Burhan, the rest of the accused also kept on firing. Conversely, PW.6 failed to utter a single word with regard to any firing made by the accused Nasir. All these factors mentioned above lead us to an irresistible conclusion that both the eyewitnesses were not sure about the role attributed to the accused. Thus, no reliance can be placed upon them for maintaining the appellant's conviction on the charge of capital sentence.

15. The medical evidence in this case was furnished by Dr. Ijaz Hussain (PW.5), who conducted the autopsy of Rana Burhan (deceased) on 07.02.2018 at about 6:30 p.m. In his Court statement, he stated that injury No.4 was the cause of death of the deceased. He also opined that the probable time that elapsed between injury and death was immediate. The occurrence in this case, as per the

complainant, took place on 07.02.2018 at about 3:30 p.m., and according to the statements of the eyewitnesses, they shifted the deceased in injured condition to the hospital for treatment, however, Dr. Ijaz Hussain (PW.5) during the course of his evidence deposed that:

“Date and time of death was at about 5:00 PM on 07-02-2018 and received the dead body in dead house at about 5:45 PM on 07-02-2018, received complete documents from police at about 6:15 PM on 07-02-2018, and autopsy was conducted on the same day at 6:30 pm. Information furnished by police, it was murdered by firearm.”

Such a stance of the eyewitnesses stands belied from the statement of above said witness, who, during cross-examination further made it clear that:-

“Death certificate available on record reveals that the injured was received expired in Surgical Emergency.”

This way, the medical evidence does not support the prosecution's case. Even otherwise, it is by now well-settled principle that medical evidence is a type of supporting evidence, which may confirm the prosecution version about locale and nature of injury, kind of weapon used in the occurrence and the duration between death and postmortem but does not provide the identity of the assassin. Reference in this context may be made to the cases of Muhammad Tasaweer v. Hafiz Zulkarnain and two others (PLD 2009 Supreme Court 53) and Altaf Hussain v. Fakhar Hussain and another” (2008 SCMR 1103). The relevant extract from the former cited case law is being reproduced hereunder:-

“It is also settled law that medical evidence may confirm the ocular evidence with regard to the seat of injury, nature of the injury, kind of weapon used in the occurrence but it would not connect the accused with the commission of the crime.”

16. Insofar as the positive report of PFSA (Exh. PU) is concerned, it is observed that after the registration of FIR, Idrees Iqbal SI (PW.8) was entrusted with the investigation of this case, who visited the spot and collected three crime empties of cartridges (P.5/1-3) as well as six crime empties of pistol .30 bore (P.6/1-6) from the place of

occurrence and these articles were taken into possession *vide* memo Exh.PL. He handed over the crime empties to Moharrar, Abid Hussain 2452/HC (PW.4) for safe custody in Malkhana. While appearing before the trial court, he deposed that on 07.02.2019, he was entrusted with the parcel of crime empties, which he handed over to IO on 18.02.2018 for its onward transmission to the office of PFSA. When the Investigating officer appeared before the trial court as PW.8, he stated that he delivered the parcel of crime empties in the office of PFSA on 19.02.2018. No justification was given by the IO as to why he kept the parcel with him for one day. Abid Hussain HC (PW.4) in his court statement stated that on 07.02.2018 he received three sealed parcels said to contain six empties of pistol .30 bore, three empties pump action .12 bore and blood stained earth but he did not mention that he was also entrusted the case property pertaining to .12 bore pump action recovered from the possession of Imran alias Mana (appellant). During cross-examination, he categorically admitted that apart from the above-mentioned three parcels the I.O. did not hand over to him any other parcel. Investigating Officer (PW.8) deposed that Imran alias Mana (appellant) was arrested on 23.02.2018, who, in the presence of witnesses, got recovered repeater .12 bore on 25.02.2018 (P.7) *vide* memo Exh.PM duly signed by Rana Mujataba (PW.7) as attesting witness; however, his evidence is absolutely blank regarding the fact that sealed parcel said to contain pump action was handed over to any Moharrar for safe custody. He only deposed that on 26.02.2018, he received one sealed parcel through road certificate bearing No.154/21 said to contain a .12 bore pump action from Muhammad Waqas Moharrar, which he deposited in the office of PFSA. It is an admitted fact that neither Muhammad Waqas Moharrar was cited as a witness nor did he enter appearance before the court in order to establish the safe custody of the sealed parcel of said pump action, which was deposited in the office of PFSA. In the wake of this fact, the positive report received from the PFSA is of no use to the prosecution because the chain of safe custody is missing, which

creates serious doubt about the recovery of the .12 bore pump action alleged to be used as a weapon at the crime scene. Reference in this context may be made to the case reported as Kamal Din alias Kamala v. The State (2018 SCMR 577) wherein the Supreme Court of Pakistan discarded the positive report of FSL with the following observation:-

“As regards the alleged recovery of a Kalashnikov from the appellant's custody during the investigation and its subsequent matching with some crime-empties secured from the place of occurrence suffice it to observe that Muhammad Athar Farooq DSP/SDPO (PW18), the Investigating Officer, had divulged before the trial court that the recoveries relied upon in this case had been affected by Ayub, Inspector in an earlier case and, thus, the said recoveries had no relevance to the criminal case in hand. Apart from that safe custody of the recovered weapon and its safe transmission to the Forensic Science Laboratory had never been proved by the prosecution before the trial court through production of any witness concerned with such custody and transmission.”

17. The motive behind the occurrence statedly was that one Adnan alias Jimmi had a money dispute with the accused, for which Rana Burhan stood arbitrator and decided it to the effect that nothing was payable from Adnan alias Jimmi. To prove the motive it was very easy for the complainant to bring Adnan alias Jimmi in the witness box to substantiate and corroborate him. The non-production of Adnan alias Jimmi by the complainant without any justification or reasonable excuse amounts to withholding of material evidence from the court. In such a situation, this Court has no other option but to hold that he would not have supported the prosecution case if Adnan alias Jimmi was brought before the Court. Furthermore, during cross-examination, complainant Tanvir Qamar (PW.6) categorically admitted that neither he described the nature and details of the dispute nor produced any document to the Investigating Officer. Since this is an important aspect, a relevant portion of cross-examination of Tanvir Qamar (PW.6) is reproduced hereunder: -

“I had not mentioned the description and details of the dispute between Adnan alias Jimi, and Tayab Ali Katarai. I had joined the investigation in the cases for two times. I had not produced any account deed/register before the IO during the course of

investigation relating to money dispute. I also had not submitted any arbitration decision laid down my deceased brother to the police during the investigation. I also had not submitted any document before the IO during the investigation by virtue of which my brother was appointed as arbitrator nor IO demanded the same.”

In such a way, the prosecution could not prove the motive against the appellant. It is well settled that once the motive is set up by the prosecution and the same is not proved, the prosecution shall suffer. Reliance in this context may be placed upon the case reported as Sarfraz and another v. The State (2023 SCMR 670) wherein the Supreme Court of Pakistan held as under:-

“It is now well established that if a specific motive has been alleged by the prosecution then it is duty of the prosecution to establish the said motive through cogent and confidence inspiring evidence. Otherwise, the same would go in favour of the accused.”

18. In light of what has been discussed above, the prosecution did not discharge its duty in proving the case against the appellant beyond a scintilla of any doubt. Needless to say, if any doubt emerges from the prosecution's case, there is no reason to withhold its benefit on the ground that the case is of a heinous nature. According to the golden principle laid down for the appraisal of evidence, the benefit of every reasonable doubt is to be extended to the accused, which can best be provided through the judgment of acquittal. While holding so, guidance can be sought from the observation of the Supreme Court of Pakistan expressed in case reported as Ayub Masih v. The State (PLD 2002 Supreme Court 1048), which for advantage sake is reproduced hereunder:-

“...The rule of benefit of doubt, which is described as the golden rule, is essentially a rule of prudence which cannot be ignored while dispensing justice in accordance with law. It is based on the maxim, “it is better that ten guilty persons be acquitted rather than one innocent person be convicted”.

19. Consequently, we allow Criminal Appeal No.9714-J of 2014 while giving the benefit of the doubt in favor of Imran alias Mana (appellant). His conviction and sentence are set aside, and he stands acquitted of the charge. Imran alias Mana (appellant) is in custody; be

released forthwith if not required to be detained in any other criminal case. Resultantly, **Murder Reference No.54 of 2020** is answered in the **NEGATIVE**, and the death sentence awarded to Imran alias Mana (convict) is **NOT CONFIRMED**.

20. For the foregoing reasons, **Criminal Appeal No.9716 of 2020** against the acquittal of respondents, namely, Muzammil alias Badshah, Tayyab alias Ali Kataria, and Nasir Mahmood (respondents No.2 to 4) being devoid of any force is hereby dismissed.

(AALIA NEELUM)
CHIEF JUSTICE

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

(ABHER GUL KHAN)
JUDGE

The judgment was announced
on 18.03.2025, dictated,
prepared, and signed on
28.03.2025

Najam
